SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 248 of 2020 (YEAR: 2020)

CORAM: R.F. NARIMAN, S. RAVINDRA BHAT, V. RAMASUBRAMANIAN

Arjun Panditrao Khotkar
... Appellant(s) / Petitioner(s)
Versus
Kailash Kushanrao Gorantyal
... Respondent(s)

Acts Referred:	Indian Evidence Act, 1872, Information Technology Act, 2000
Sections:	Section 65B Evidence Act, Section 65A Evidence Act

JUDICIAL HEADNOTE & SUMMARY

Settled conflicting precedents by ruling that a certificate under Section 65B(4) is an absolute condition precedent for the admissibility of electronic records as secondary evidence in legal proceedings.

RATIO DECIDENDI

The Court held that: Settled conflicting precedents by ruling that a certificate under Section 65B(4) is an absolute condition precedent for the admissibility of electronic records as secondary evidence in legal proceedings. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (Civil Appeal No. 248 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Evidence Act, 1872, Information Technology Act, 2000, particularly Section 65B Evidence Act, Section 65A Evidence Act. Settled conflicting precedents by ruling that a certificate under Section 65B(4) is an absolute condition precedent for the admissibility of electronic records as secondary evidence in legal proceedings.

OPERATIVE ORDER

ORDER: Decided